

State Of Gujarat vs Rathod Nikusinh Champaksinh on 25 March, 2026

R/CR.A/1621/2010

CAV

Reserve
Pronoun

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/CRIMINAL APPEAL NO. 1621 of 2010

STATE OF GUJARAT

Versus

RATHOD NIKUSINH CHAMPAKSINH

Appearance:

MR YUVRAJ BRAHMBHATT, APP for the Appellant(s) No. 1

MR DR BHATT(165) for the Opponent(s)/Respondent(s) No. 1

CORAM:HONOURABLE MR.JUSTICE SANJEEV J.THAKER

CAV JUDGMENT

1. Feeling aggrieved by and dissatisfied with the judgment and order of acquittal, dated 17.06.2010, passed by the learned Special Judge (Electricity) in Special Electricity Case No.14 of 2009, for the offences punishable under Section 135(1)(B) of the Indian Electricity Act, the appellant - State of Gujarat has preferred this appeal under Section 378 of the Code of Criminal Procedure, 1973 (for short, "the Code").

2. The prosecution case as unfolded during the trial before the trial Court is that, on 04.10.2008, the complainant, in the capacity of Junior Engineer, UGVCL, raided the premises of the accused in the night and found that the accused was committing theft of electricity; on inspection, it was found that the service wire was illegally connected by linking the phase wire with a red-coloured wire, thereby NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined directly drawing electricity on the load side; therefore, the penalty bill was prepared for Rs.5,130=95

Ps., which was paid by the consumer; since the very consumer had committed theft previously on 07.03.2006 at the same installation, the complaint was filed against the respondent as he was found committing theft for the second time.

3. After investigation, sufficient prima facie evidence was found against the accused person/s and therefore, charge- sheet was filed in the competent criminal Court. Since the offence alleged against the accused person/s was exclusively triable by the Special Court, the learned Magistrate committed the case to the Special Court where it was registered as Special (Electricity) Case No.14 of 2009. The charge was framed against the accused person/s. The accused pleaded not guilty and came to be tried.

4. In order to bring home the charge, the prosecution has examined the following witnesses and also produced the following documentary evidence before the trial Court, which are described in the impugned judgment, which are as under:

: ORAL EVIDENCE

Sr.No.

Name of witnesses

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Virendrabhai

(Hostile)

Punabhai

: DOCUMENTARY

EVIDENCE

Sr.No.

Particulars of the Documents

the accused

bill to the accused

calculation of bill dated 4.10.08

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dated 7.3.06

accused

7.3.10

Mulabhai The defence has examined wi
Chamar vide Exh.30 and ha

necessary xerox copies of the Assessment-sheet Register vide Exh.31, the Pedigree vide Exh.32 and the Receipt of House Tax vide Exh.33.

5. After hearing both the parties and after analysis of evidence adduced by the prosecution, the learned trial Judge acquitted the accused for the offences for which they were charged, by holding that the prosecution has failed to prove the case beyond reasonable doubt.

6. Learned APP for the appellant - State has pointed out the facts of the case and having taken this Court through both, oral and documentary evidence, recorded before the learned trial Court, would submit that the learned trial Court has failed to appreciate the evidence in true sense and NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined perspective; and that the trial Court has committed error in acquitting the accused. It is submitted that the learned trial Court ought not to have given much emphasis to the contradictions and/or omissions appearing in the evidence and ought to have given weightage to the dots that connect the accused with the offence in question. It is submitted that the learned trial Court has erroneously come to the conclusion that the prosecution has failed to prove its case. It is also submitted that the learned Judge ought to have seen that the evidence produced on record is reliable and believable and it was proved beyond reasonable doubt that the accused had committed an offence in question. It is, therefore, submitted that this Court may allow this appeal by appreciating the evidence led before the learned trial Court.

7. As against that, learned advocate for the respondent/s would support the impugned judgment passed by the learned trial Court and has submitted that the learned trial Court has not committed

any error in acquitting the accused. The trial Court has taken possible view as the prosecution has failed to prove its case beyond reasonable doubt. Therefore, it is prayed to dismiss the present appeal by confirming the impugned judgment and order passed by the learned trial Court.

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8. In the aforesaid background, considering the oral as well as documentary evidence on record, independently and dispassionately and considering the impugned judgment and order of the trial Court, the following aspects weighed with the Court :

8.1 The prosecution has examined the complainant viz., Dhyanesh Virendrabhai Raval as P.W.1, vide Exh.7, who has deposed that on receiving instructions, he proceeded for inspection; during such checking, it was found that the phase wire of the main service line was cut and electricity theft was committed; and accordingly, the inspection report was prepared.

In the cross-examination, it has been brought on record that the order to carry out checking was allegedly issued by the Division Office, however, no such order has been produced before the Court along with the complaint; he has denied the suggestion that no such order was ever received from the Division Office; that the witness has admitted that no authorization letter was issued by the Division Office or higher authority for filing the present complaint; that he was deputed by this Deputy Engineer to file the complaint, but no such order or authorization has been produced before the Police or the Court.

NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined 8.2 The prosecution has examined Hitendrasinh Dudharsinh Rahevar, P.S.O., as P.W.5, vide Exh.14. He has stated that on 13.01.2009, while he was on duty as PSO at Sabarmati GEB Police Station, the complainant personally submitted a written complaint before him and on receiving the same, he registered the offence and made necessary entry in the Station Diary, which is produced vide Exh.15. He further stated that, as per the instructions of the Police Inspector, he handed over the investigation to the Head Constable viz., Babuabhai Narsangbhai Chaudhary, who is the Investigating Officer.

He admitted in his cross-examination that no endorsement was made on the complaint regarding its receipt. He also stated that apart from receiving and registering the complaint, no other work was carried by him. 8.3 The prosecution has examined Ramanbhai Joitabhai Patel as P.W.6, vide Exh.17. He has stated that on 04.10.2008, he, along with the staff members, had gone for checking of electricity theft and found that the theft of electricity was committed at the house of consumer - Champaksinh Vakhatsinh; and that upon inquiry, it was revealed that the occupier of the premises Nikusinh was committed the said theft of electricity. The checking sheet was prepared showing the details of the theft and the NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined signature of the occupier - Nikusinh Champaksinh Rathod was obtained. The illegal electricity connection was disconnected and the meter and service wire as well as the red-coloured wire used for committing the theft were seized and sent to the office.

In the cross-examination, he has admitted that in his police statement, it is not mentioned that the occupier of the premises was Nikusinh. He has further admitted that it is also not stated in his police station that the meter, service wire and red-coloured wire were seized and brought to the office.

8.4.1 It would be fruitful to refer to the relevant provision of the Act. Thus, Section 151 of the Indian Electricity Act reads as under:

"151. Cognizance of offences:

No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by Appropriate Government or Appropriate Commission or any of their officer authorized by them or a Chief Electrical Inspector or an Electrical Inspector or licensee or the generating company, as the case may be, for this NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined purpose.

take [Provided that the
cognizance of an off

under this Act upon a report of a police officer filed under section 173 of the Code of Criminal Procedure, 1973:

Provided further that a special court constituted under section 153 shall be competent to take cognizance of an offence without the accused being committed to it for trial.]"

8.4.2 In view of the aforesaid provisions, the complaint is required to be filed in writing and must be filed by a competent officer. In the present case, the complainant is a junior officer and he has admitted in his cross-examination that no such deputation order or authorization order is placed on record by him deputing him to file the complaint. Thus, the complainant, who is a Junior Engineer, has no authority to file the complaint.

8.5 Moreover, with respect to the authority of the complainant to file a complaint, it seems that the same was only for searching the property, but the fact is that there is no authority that has been produced by the complainant NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined giving authority to the present complainant to file a complainant as stated in Section 151 of the Act. Moreover, the complainant is a Junior Engineer and the trial Court has rightly held that the complainant, being a Junior Engineer, did not have any authority under Section 151 of the Act to file a complaint.

8.6 Further, from the aforesaid evidence, it transpires that during the inspection of the property, the record reflects the consumer's name as Rathod Champaksinh Vakhatsinh. It also comes on record that the said consumer has expired. That the present accused was the occupier of the said property; and that he was present at the time of inspection and had also signed the inspection report. However, there is no documentary evidence on record to establish the number of heirs or legal representatives of the deceased Champaksinh.

8.7 Further, if the evidence of the Investigating Officer viz., Babubhai Narsangbhai Chaudhary, (Exh.26) is taken into consideration, it transpires that the said Champaksinh had expired, but neither Pedigree has been produced by the complainant nor is there any document produced by the prosecution to show that the accused was in exclusive possession of the property as owner.

NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined 8.8 The defence witness - Dahyabhai Mulabhai Chamar, who has been examined vide Exh.30, has produced the Pedigree vide Exh.32, which shows that other than the accused, there are other 10 legal heirs of the deceased - Champakbhai and there is also evidence on record that the widow of Champakbhai i.e. Valuben is residing in the said premises.

9. Further, learned APP is not in a position to show any evidence to take a contrary view in the matter or that the approach of the Court below is vitiated by some manifest illegality or that the decision is perverse or that the Court below has ignored the material evidence on record. In above view of the matter, I am of the considered opinion that the Court below was completely justified in passing impugned judgment and order.

10. Considering the impugned judgment, the trial Court has recorded that there was no direct evidence connecting the accused with the incident and there are contradictions in the depositions of the prosecution witnesses. In absence of the direct evidence, it cannot be proved that the accused are involved in the offence. Further, the motive of the accused behind the incident is not established. The NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined trial Court has rightly considered all the evidence on record and passed the impugned judgment. The trial Court has rightly evaluated the facts and the evidence on record.

11. It is also a settled legal position that in acquittal appeal, the appellate court is not required to re-write the judgment or to give fresh reasoning, when the reasons assigned by the Court below are found to be just and proper. Such principle is down by the Apex Court in the case of State of Karnataka Vs. Hemareddy, reported in AIR 1981 SC 1417 wherein it is held as under:

"... This court has observed in *Girija Nandini Devi V. Bigendra Nandini Chaudhary* (1967)1 SCR 93: (AIR 1967 SC 1124) that it is not the duty of the appellate court when it agrees with the view of the trial court on the evidence to repeat the narration of the evidence or to reiterate the reasons given by the trial court expression of general agreement with the reasons given by the Court the decision of which is under appeal, will ordinarily suffice."

12. Thus, in case the appellate court agrees with the NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined reasons and the opinion given by the lower court, then the discussion of evidence at length is not necessary.

13. In the case of *Ram Kumar v. State of Haryana*, reported in AIR 1995 SC 280, Supreme Court has held as under:

"The powers of the High Court in an appeal from order of acquittal to reassess the evidence and reach its own conclusions under Sections 378 and 379, Cr.P.C. are as extensive as in any appeal against the order of conviction. But as a rule of prudence, it is desirable that the High Court should give proper weight and consideration to the view of the Trial Court with regard to the credibility of the witness, the presumption of innocence in favour of the accused, the right of the accused to the benefit of any doubt and the slowness of appellate Court in justifying a finding of fact arrived at by a Judge who had the advantage of seeing the witness. It is settled law that if the main grounds on which the lower Court has based its order acquitting the accused are reasonable and plausible, and the same NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined cannot entirely and effectively be dislodged or demolished, the High Court should not disturb the order of acquittal."

14. As observed by the Hon'ble Supreme Court in the case of Rajesh Singh & Others vs. State of Uttar Pradesh reported in (2011) 11 SCC 444 and in the case of Bhaiyamiyan Alias Jardar Khan and Another vs. State of Madhya Pradesh reported in (2011) 6 SCC 394, while dealing with the judgment of acquittal, unless reasoning by the trial Court is found to be perverse, the acquittal cannot be upset. It is further observed that High Court's interference in such appeal in somewhat circumscribed and if the view taken by the trial Court is possible on the evidence, the High Court should stay its hands and not interfere in the matter in the belief that if it had been the trial Court, it might have taken a different view.

15. In the case of Chandrappa v. State of Karnataka, reported in (2007) 4 SCC 415, the Hon'ble Apex Court has observed as under:

"42. From the above decisions, in our considered view, the following general principles regarding powers of the appellate NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined court while dealing with an appeal against an order of acquittal emerge:

(1) An appellate court has full power to review, reappraise and reconsider the evidence upon which the order of acquittal is founded.

(2) The Criminal Procedure Code, 1973 puts no limitation, restriction or condition on exercise of such power and an appellate court on the evidence before it may reach its own conclusion, both on questions of fact and of law.

(3) Various expressions, such as, "substantial and compelling reasons", "good and sufficient grounds", "very strong circumstances", "distorted conclusions", "glaring mistakes", etc. are not intended to curtail extensive powers of an appellate court in an appeal against acquittal. Such phraseologies are more in the nature of "flourishes of language" to emphasise the reluctance of an appellate court to interfere with acquittal than to curtail the power of the court to review the evidence and to come to its own conclusion.

(4) An appellate court, however, must bear in mind that in case of acquittal, there is NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined double presumption in favour of the accused.

Firstly, the presumption of innocence is available to him under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent court of law. Secondly, the accused having secured his acquittal, the presumption of his innocence is further reinforced, reaffirmed and strengthened by the trial court.

(5) If two reasonable conclusions are possible on the basis of the evidence on record, the appellate court should not disturb the finding of acquittal recorded by the trial court."

16. The Hon'ble Apex Court, in a recent decision, in the case of Constable 907 Surendra Singh and Another V/s State of Uttarakhand reported in (2025) 5 SCC 433, has held in paragraph 24 as under:

"24. It could thus be seen that it is a settled legal position that the interference with the finding of acquittal recorded by the learned trial Judge would be warranted by the High Court only if the judgment of NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined acquittal suffers from patent perversity; that the same is based on a misreading/omission to consider material evidence on record; and that no two reasonable views are possible and only the view consistent with the guilt of the accused is possible from the evidence available on record."

17. Considering the aforesaid facts and circumstances of the case and law laid down by the Hon'ble Supreme Court while considering the scope of appeal under Section 378 of the Code of Criminal Procedure, 1973, no case is made out to interfere with the impugned judgment and order of acquittal.

18. In view of above facts and circumstances of the case, on my careful re-appreciation of the entire evidence, I found that there is no infirmity or irregularity in the findings of fact recorded by learned trial Court and under the circumstances, the learned trial Court has rightly acquitted the respondent/s - accused for the elaborate reasons stated in the impugned judgment and I also endorse the view/finding of the learned trial Court leading to the acquittal.

19. In view of the above and for the reasons stated NEUTRAL CITATION R/CR.A/1621/2010 CAV JUDGMENT DATED: 25/03/2026 undefined above, the present Criminal Appeal fails and the same deserves to be dismissed and is dismissed, accordingly. Record & Proceedings be remitted to the concerned trial Court forthwith.

(SANJEEV J.THAKER,J) SRILATHA